Petition for Paternity
Form Instructions

Use this form:

1. If paternity has not already been established with the court yet.
2. If you and the child's other parent are not married and have not been divorced.

Before you get started

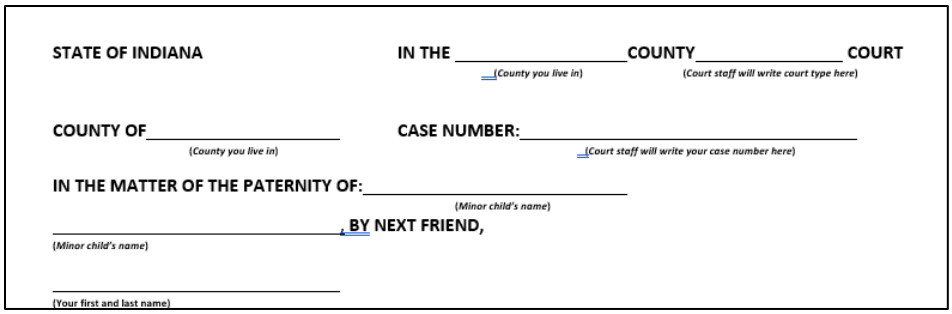
- All forms included in this form packet **are required** to file your paternity case with the court.

- You may choose to file your documents at the courthouse in the county in which the child lives or in the county where either parent lives, or to e-file them. If you want to file your paper documents at the courthouse, you will need to print them when you have finished filling them out. You can review the information about how to file your forms with the court in-person at this link: https://indianalegalhelp.org/how-to-file-forms-with-the-court-in-person/

- **If you choose to e-file**, instead of filing in-person, make sure you review the information at this link: https://indianalegalhelp.org/how-to-electronically-file-forms-with-the-court/

- **There is a filing fee.** Contact your local county clerk's office to find out what the filing fee is at this link: https://www.in.gov/courts/files/court-directory.pdf. You might qualify for a fee waiver. You can learn more about filing for a fee waiver here: https://indianalegalhelp.org/filing-fee-frequently-asked-questions/

Who Should be Completing What?


STATE OF INDIANA

IN THE _____COUNTY_____ COURT
(County you live in) (Court staff will write court type here)

COUNTY OF_____
(County you live in)

CASE NUMBER:_____
(Court staff will write your case number here)

IN THE MATTER OF THE PATERNITY OF:_____
(Minor child's name)

_____, BY NEXT FRIEND,
(Minor child's name)

_____
(Your first and last name)

The picture above is a "Caption" and is at the top of each form. You will fill in the county information and your name. The court staff will complete court information and your case number.



The icon to the left is the "**Petitioner**" icon. Wherever you see the Petitioner icon, you will begin filling in the blanks with the correct information. Once you see the Court Staff icon, stop filling in the blanks until you see the Petitioner icon again. The Court Staff icon is explained below.



The icon to the left is the "**Court Staff**" icon. Wherever you see the Court Staff icon, the court staff will fill in the blanks with the required information. **Do not complete** anything in areas where you see the Court Staff con.

There may be entire pages in this form packet that only the court staff or notary public will complete. These pages will only have the Court Staff icon and no Petitioner icons.

Forms Included in this Packet:

1.) Appearance
- This is the form that tells the court how to contact you if they need to.

2.) Civil Appearance Form
- This is the form that asks for the social security numbers of all parents and minor children involved in the case. This is a private form that the public will not be able to see.

3.) Verified Petition to Establish Paternity
- This is the form that asks the court to start your paternity case.

4.) Summons and Notice of Initial Hearing in a Paternity Case

- This form will be served to the other parent to let them know you have opened a paternity case with the court. On the form, you will choose how the other parent will receive this form.

5.) Order Setting Hearing

- The judge will schedule a hearing by completing the Order Setting Hearing. You must come to court on the day and time the court puts in the Order.
- After the court sets the hearing, you have to make a reasonable effort to get a copy of the following forms to all interested parties:
    - Verified Petition to Establish Paternity
    - Summons and Notice of Initial Hearing in a Paternity Case
- You can pay to have the sheriff give the Petition and Summons and Notice of Initial Hearing in a Paternity Case to a person or to have the clerk mail the papers by certified mail.
- It may be hard to find a parent or other interested party, but you have to show the court that you really tried. If you cannot find a parent or other interested person, make sure you have proof that you really looked for them. This might mean searching social media and using other online resources. The court might allow you to give notice by publishing in a newspaper. You can find links to more information on notice here: https://indianalegalhelp.org/service-frequently-asked-questions/

7.) Order Establishing Paternity

- This is the form the judge fills out establishing paternity, custody, child support, and parenting time.

Terms You May Need to Know

By Next Friend- These words are in the caption at the top of each form to show who is filing the case for the child. Since the child is too young to file alone, a parent or guardian does it for them to help protect their legal rights.

Juvenile Paternity Case (JP)- The court system in Indiana assigns a unique number to each case so the courts know exactly which case is being heard and to keep track of the case records. That unique number is called a "case number". Each of those case numbers include lots of different numbers and letters. Part of the case number includes two letters that say what type of case it is. For cases that deal with children of parents that were not married to each other at the time of the child's birth, those cases are called Juvenile Paternity cases, and their case type is "JP". JP cases deal with knowing who the father of the child is, which parent has custody and parenting time with the child, and if there is child support, who pays it, and how much.

Related Cases- Sometimes there can be other cases that have the same parties and the child, like if the Department of Child Services is involved with the family. Also, it's possible that someone other than the parent(s) was responsible for caring for the child under a Minor Guardianship case. Those types of cases would be considered "Related Cases".

Wedlock- This means "while married". If a child was born "out of wedlock", it means the child was born when the child's parents weren't married to each other.

Claim for Relief- A "Claim for Relief" is something you want to say or ask for because of the paternity case. If there is something you want to ask for in the paternity case, you need to include it in your written reply.

Perjury- When a person makes a false statement under oath or affirmation in the case documents or when they testify in court, when they know the statement is false or they don't believe the statement is true.

Certificate of Service- When a court case begins, it's important for both sides to know about it and receive official forms. This is called "service of process." These forms tell them about the case and their rights. You are required to give a copy of every form you file with the court to every other person involved in the case. You must say when you gave them the copies and how you gave them the copies. Here are the ways to get them their copies:

> First Class U.S. mail- You can serve the court forms by paying to have them sent by certified mail. The clerk will ask you to complete the Certified Mail card. The clerk will serve the court forms by Certified Mail. Certified mail ensures that the court forms have been signed for and received.

Hand Delivery- You can serve the court forms by paying to have a sheriff or private company hand- deliver them to the other party. Ask the clerk for information on how to use the Sheriff's office to serve your court forms.

Indiana's E-Filing System- You can serve the court forms by filing your documents electronically. Ask the clerk for information on how to e-file your court forms.

Clerk's Certificate of Mailing- This is where the Clerk of the Court says what date they mailed certain documents, who they mailed them to, and how they were mailed.

Return on Service of Summons by Mail- This is where the Clerk of the Court says what happened with the documents they mailed. Only one of the options will be completed.

Return of Service of Summons by Sheriff- This is where the Sheriff will say how the documents were delivered, and the date they were delivered.

Joint Legal Custody- This means the parents will share the responsibility for the major decisions for the child's upbringing, including education, health care, and religious training. This is typically used when the parents are able to work things out between themselves about these topics.

Sole Legal Custody- This means that while both parents are allowed to make day-to-day decisions about the child, the parent that has "Primary Physical Custody" is the parent that makes the major decisions about the child's upbringing, including education, health care, and religious training, after talking with the other parent.

Primary Physical Custody- The parent that has "Primary Physical Custody" is usually the parent the child will live with most of the time. This parent, often called the "custodial parent", is the one responsible for the care and supervision of the child most of the time. Usually, the other parent, often called the "noncustodial parent", and the child will have parenting time together on days when the child is not staying with the custodial parent.

Parenting Time Guidelines- The Indiana Parenting Time Guidelines are official rules that show how parents that don't live together should share time with their children. They provide a minimum amount of time for when each parent can spend time with their child. These guidelines are meant to help make sure kids get to see both parents and that their needs are met fairly.

Income Withholding Order- An Income Withholding Order in a Paternity case is a court order that tells your employer to take money directly from your paycheck to pay for child support. This money is then sent to the other parent or to the Indiana State Central Collection Unit (INSCCU), which will then pass it along to the other parent. It helps ensure that payments are made regularly and on time.

Controlled Expenses- Controlled expenses are costs for things like clothing, school supplies, and personal care that the custodial parent, the parent who primarily takes care of the child, pays for. These expenses are not paid for by the other parent and are only covered by the custodial parent. Examples include buying a winter coat or paying for schoolbooks.

Child Support Arrearage- Child support arrearage, sometimes known as back child support, is the amount of money that is still owed because it hasn't been paid when it was supposed to be paid. It is the total of all missed child support payments. If there is any arrearage, sometimes a court will include an additional amount of child support that goes toward paying off the arrearage.

STATE OF INDIANA **IN THE _____ COUNTY _____ COURT**
(*County you live in*) (*Court staff will write court type here*)

COUNTY OF _____ **CASE NUMBER: _____**
(*County you live in*) (*Court staff will write your case number here*)

IN THE MATTER OF THE PATERNITY OF: _____
(*Minor child's name*)

_____, BY NEXT FRIEND,
(*Minor child's name*)

_____
(Your first and last name)

and

_____
(Your first and last name)
PETITIONER

v.

_____
(The other parent's first and last name)
RESPONDENT

APPEARANCE BY SELF-REPRESENTED PERSON IN CIVIL CASE

Instructions: Each person in this case must complete this form.



1. My name is: _____.
2. I am representing myself in this case and I do not have a lawyer.
3. I am (***Select "Initiating" Below***):
   - ☐ Initiating (***opening this case with the court***)
   - ☐ Responding (***answering or defending myself in this case***)
4. My address is (***Include your street name, city, state, and zip code***):

   _____

   _____ .

   My email address, phone number, and fax number are (***An email address and a 10-digit phone number are required below; a fax number is not required if you do not have one***):

   Email Address: _____

   Phone Number: _____

   Fax Number: _____

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CCA-DC-0519-3018
www.indianalegalhelp.org

5. I would like to receive my court documents and case information (***Select One Below***):

   ☐ at my street address.

   ☐ at my email address.

   ☐ at the Attorney General confidential address. ***(This option is only available if you have used this address in another court case.***)

6. This is a JP case type as defined in Administrative Rule 8(B)(3).

7. (***Select One Below***):

   ☐ There are other cases related to this paternity case. The case number(s) can be found below:

   _____

   ☐ There are no other cases related to this paternity case.

8. **(*Select One* Below):**

   ☐ I am not aware of any additional information required by a local rule that I must provide.

   ☐ There is additional information required by local rule that is provided below:_____

   _____

Signature:_____ Date:_____

<u>Certificate of Service</u>

⚠ I certify that I mailed a copy of this Appearance form to the other parent, and any other interested parties in this case, as listed below. I sent this form to:

First and Last Name	Address	Type of Service Used	Date of Service

Signature: _____ Date:_____

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STATE OF INDIANA **IN THE _____ COUNTY _____ COURT**

(*County you live in*) (*Court staff will write court type here*)

COUNTY OF _____ **CASE NUMBER: _____**

(*County you live in*) (*Court staff will write your case number here*)

IN THE MATTER OF THE PATERNITY OF: _____

(*Minor child's name*)

_____, BY NEXT FRIEND,

(*Minor child's name*)

_____

(Your first and last name)

and

_____

(Your first and last name)

PETITIONER

v.

_____

(The other parent's first and last name)

RESPONDENT

NOT FOR PUBLIC ACCESS

IN ACCORDANCE WITH INDIANA RULES ON ACCESS TO COURT RECORDS

Court Staff: For self-represented litigants, treat this form as if it is printed on light green paper. If it is e-filed, file it as a confidential document.

Civil Appearance Form



Instructions: Write the social security numbers of each parent and minor child who is involved in child support cases below. Be sure to include your name, the other parent's name, and your child(ren)'s name(s).

Name: _____ SS#: _____

Name: _____ SS#: _____

Name: _____ SS#: _____

Name: _____ SS#: _____

Name: _____ SS#: _____

Name: _____ SS#: _____

Name: _____ SS#: _____

NOT FOR PUBLIC ACCESS

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STATE OF INDIANA **IN THE _____ COUNTY _____ COURT**

(*County you live in*) (*Court staff will write court type here*)

COUNTY OF _____ **CASE NUMBER: _____**

(*County you live in*) (*Court staff will write your case number here*)

IN THE MATTER OF THE PATERNITY OF: _____

(*Minor child's name*)

_____, BY NEXT FRIEND,

(*Minor child's name*)

_____

(Your first and last name)

and

_____

(Your first and last name)

PETITIONER

v.

_____

(The other parent's first and last name)

RESPONDENT

VERIFIED PETITION TO ESTABLISH PATERNITY



1. My name is: _____.
2. I am representing myself in this case and I do not have a lawyer.
3. The name of the minor child's mother is:

   _____.
4. The mother of the minor child currently lives at: (***Include street name, city, county, state, and zip code below***):

   _____

   _____.
5. The name of the minor child's biological father is:

   _____.
6. The father of the minor child currently lives at: (***Include street name, city, county, state, and zip code below***):

   _____

   _____.

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7. The mother gave birth to (***Name of minor child you are opening this paternity case for***):

   _____.

8. The minor child's date of birth is (***Include the month, day, and year***):

   _____.

9. The minor child currently lives at (***Include street name, city, county, state, and zip code below***):

   _____

   _____.

10. When the minor child was conceived and born the parties were not married to each other.
11. I am asking the court to schedule a hearing for this case and at that hearing enter an order to establish paternity, child support, parenting time, custody, and for all other further relief that is just and proper.

I affirm under the penalties for perjury that the foregoing representations are true.

Printed Name: _____

Signature: _____

Date: _____

Certificate of Service



I certify that I mailed a copy of this Appearance to the parents or other interested parties as listed below. I sent this form to:

First and Last Name	Address	Type of Service Used	Date of Service

Signature: _____

Date: _____

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STATE OF INDIANA **IN THE _____COUNTY_____ COURT**

(*County you live in*) (*Court staff will write court type here*)

COUNTY OF_____ **CASE NUMBER:_____**

(*County you live in*) (*Court staff will write your case number here*)

IN THE MATTER OF THE PATERNITY OF:_____

(*Minor child's name*)

_____, BY NEXT FRIEND,

(*Minor child's name*)

_____

(Your first and last name)

and

_____

(Your first and last name)

PETITIONER

v.

_____

(The other parent's first and last name)

RESPONDENT

SUMMONS

AND NOTICE OF INTIAL HEARING IN A PATERNITY CASE

Instructions: In the lines below, write the other parent's (Respondent) full name and address (include the street, city, state, and zip code.)

THE STATE OF INDIANA TO: _____

_____

_____

A paternity case has been filed in the Court stated above. A copy of the Petition (and any other forms required by the court) is served with this Summons and has important details about this paternity case.

You or your attorney must file a written answer or other appropriate response to the Petition **within twenty (20) days, starting the day after you have received this Summons (or twenty-three (23) days if you received this Summons by mail)**. If you do not file an answer or appropriate response to the

Petition, the court may make a decision against you by default, and a final order may be entered determining paternity, custody, parenting time, and child support.

If you have a claim for relief against the plaintiff that is strictly related to this paternity case, you must state the claim in your written answer or appropriate response.

You have rights in this case, including the right to a jury trial.

If an Order Setting Hearing is attached to this form, you must go to Court on the date and time written on the Order Setting Hearing. If you do not go to Court, evidence may be heard, and the court may make a decision without you. If you wish to hire an attorney to represent you in this case, you should do so before your Court date.

If you do not file an Appearance form with the Clerk and give a copy to the other party or the other party's lawyer (if they have one), you may not receive any further notices about this case.



This Summons was sent by (***Select One Below***):

☐ Certified Mail

☐ Sheriff

Date: _____

_____
Clerk

_____ COURT

By: _____
Deputy Clerk

CLERK'S CERTIFICATE OF MAILING

I hereby certify that on the _____day of_____,

20_____, I mailed a copy of this Summons and a copy the Petition to the Respondent by certified mail, requesting a return receipt, at the address provided by the Plaintiff.

Dated:_____ _____

Clerk, _____County

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CCA-JP-0519-1064
www.indianalegalhelp.org

RETURN ON SERVICE OF SUMMONS BY MAIL

I hereby certify that the attached receipt was received by me showing that the Summons and a copy of the Petition mailed to the Respondent of this Summons was accepted by the Respondent on the ___ day of_____ _____, 20_____.

I hereby certify that the attached return receipt was received by me showing that the Summons and a copy of the Petition was returned not accepted on the _____ day of _____, 20_____.

I hereby certify that the attached return receipt was received by me showing that the Summons and a copy of the Petition mailed to the Respondent of this Summons was accepted by _____ on beahlf of the Respondent on the _____ day of_____ _____, 20_____.

Dated:_____ _____

Clerk, _____ County

RETURN OF SERVICE OF SUMMONS BY SHERIFF

I hereby certify that I have served this summons on the _____ day of _____, 20_____.

By delivering a copy of the Summons and a copy of the Petition to the Resondent.

By leaving a copy of the Summons and a copy of the Petition at:

_____

_____

which is the dwelling place or usual place of abode of the Respondent and by mailing a copy of the Summons to the Respondent at the above address.

The Respondent was not found in my bailwick this date, _____, 20_____.

ALL DONE IN _____, COUNTY, INDIANA.

_____

SHERIFF OF _____ COUNTY, INDIANA

BY: _____

SERVICE ACKNOWLEDGED

Instructions: The Respondent (other parent) must complete the section below when they receive the forms from the Sheriff. The Sheriff will take this completed form and return it to the Clerk.

I hereby acknowledge that I received a copy of the attached Summons and a copy of the Petition at the following address **(*include the street, city, state, and zip code*)**:

_____

_____

in _____***(county name)***, Indiana, on this date, _____, 20_____.

_____

Respondent Signature

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www.indianalegalhelp.org

STATE OF INDIANA **IN THE** _____ **COUNTY** _____ **COURT**
(*County you live in*) (*Court staff will write court type here*)

COUNTY OF _____ **CASE NUMBER:** _____
(*County you live in*) (*Court staff will write your case number here*)

IN THE MATTER OF THE PATERNITY OF: _____
(*Minor child's name*)

_____, **BY NEXT FRIEND,**
(*Minor child's name*)

_____
(Your first and last name)

and

_____
(Your first and last name)

PETITIONER

v.

_____
(The other parent's first and last name)

RESPONDENT

ORDER SETTING HEARING

The self-represented Petitioner's name is: _____.

The Petitioner filed a Verified Petition to Establish Paternity, and the Court finds that this case should be set for a hearing.

It is ordered that this case should be heard on:

_____.

Date: _____ _____
Judicial Officer

Distribution:

Petitioner Name: _____

Petitioner Address: _____

_____

Respondent Name: _____

Respondent Address: _____

_____

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STATE OF INDIANA **IN THE _____COUNTY_____ COURT**

(*County you live in*) (*Court staff will write court type here*)

COUNTY OF_____ **CASE NUMBER:_____**

(*County you live in*) (*Court staff will write your case number here*)

IN THE MATTER OF THE PATERNITY OF:_____

(*Minor child's name*)

_____, BY NEXT FRIEND,

(*Minor child's name*)

_____

(Your first and last name)

and

_____

(Your first and last name)

PETITIONER

v.

_____

(The other parent's first and last name)

RESPONDENT

ORDER ESTABLISHING PATERNITY, CUSTODY, CHILD SUPPORT,

AND PARENTING TIME

1. The Court has reviewed the Verified Petition to Establish Paternity and has held a hearing on this matter.
2. The name of the minor child is: _____.
3. The Court finds that the minor child's biological father is:

   _____.
4. The Court finds that the minor child's biological mother is:

   _____.

Leave the following sections blank until you see the Petitioner icon.

5. **Custody and Care of the Minor Child(ren)**

It is best for the minor child(ren) that:

☐ The parties should have joint legal custody over the minor child(ren) and the Petitioner should have primary physical custody.

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☐ The parties should have joint legal custody over the minor child(ren) and the Respondent should have primary physical custody.

☐ The Petitioner should have sole legal custody of the minor child(ren) and should have primary physical custody.

☐ The Respondent should have sole legal custody of the minor child(ren) and should have primary physical custody.

☐ Other, as described below:

_____

_____

_____

_____

_____

_____

6. <u>Parenting Time</u>

Parenting time with the minor child(ren) should be as follows:

The party checked below should have parenting time with the minor child(ren), at minimum, as set out by the Indiana Parenting Time Guidelines:

☐ Petitioner

☐ Respondent

☐Other: It is best for the minor child(ren) to follow a parenting time schedule that does NOT follow the Indiana Parenting Time Guidelines. Parenting time with the minor child(ren) should be as follows:

_____

_____

_____

_____

_____

_____

7. Child Support

The party checked below will pay the following amount in child support per week as shown by the attached child support worksheet: _____.

☐ Petitioner

☐ Respondent

Child support payments will begin on the first Friday after the date of the court order.
All support payments should be made through the County Clerk's Office (cash payments only) or the **Indiana State Central Collection Unit, PO Box 6219, Indianapolis, Indiana 46206-6219** (for any payments that are not cash).

The court will issue an Income Withholding Order according to IC 31-16-15 to any employer or income provider of the Obliger (the party who will be paying child support), which is active immediately.

The party checked below will be responsible for all controlled expenses related to the upbringing of the minor child(ren).

☐ Petitioner

☐ Respondent

The Petitioner will be responsible for paying the following percentage of reasonable and medically necessary annual expenses for the minor child(ren)'s uninsured medical, dental, orthodontic, hospital, vision, pharmaceutical, and psychological healthcare: _____%
The Respondent will be responsible for paying the following percentage of reasonable and medically necessary annual expenses for the minor child(ren)'s uninsured medical, dental, orthodontic, hospital, vision, pharmaceutical, and psychological healthcare: _____%

To ask the other parent for help with healthcare expenses, you need to provide the other parent with copies of all documents related to the insurance claim and the expenses you have already paid. Make sure to do this within thirty (30) days of receiving these documents, or you might not be

able to get their contribution. For expenses you paid at the time of service, you must provide the other parent with copies of those documents within thirty (30) days of the date when the healthcare services were provided.

The following party will be responsible for paying the following child support arrearage amount that has built up, or accrued, during the course of this case: $_____.

The following arrearage amount should be paid over time in weekly installments in addition to the child support amount given above until the full arrearage amount is paid: $_____ per week.

8. Health Insurance

The party checked below will be responsible for having and maintaining medical, dental, and optical insurance as available through employment or Health Insurance Marketplace, or by government provided insurance for the minor child(ren):

☐ Petitioner

☐ Respondent

☐ Other: Health insurance is not available to either parent at a reasonable cost, so neither party is ordered to provide health insurance at this time.

If health insurance for the child(ren) becomes available at a reasonable cost to one or both of the parties, the party who has the available coverage will get coverage for the child(ren) within a reasonable time after the coverage becomes available to them.

9. Birth Expenses

The party checked below shall pay $_____ for reasonable birth expenses, which is _____% of the reasonable expenses of the mother's pregnancy and childbirth.

☐ Petitioner

☐ Respondent

This must be paid to:

☐ the healthcare provider as identified in the medical claim documents supporting this calculation.

☐ the mother as reimbursement for expenses paid.

- or -

☐ The parties agree there are no birth expenses.

10. <u>Taxes</u>

The party checked below will be able to claim the minor child(ren) for federal, state, and local income tax purposes annually (on a yearly basis) and both parties should work together to sign all needed forms that will allow the party claiming the exemption to do so:

☐ Petitioner

☐ Respondent

☐ Other: The Petitioner and the Respondent are both able to claim the minor child(ren) for federal, state, and local income tax purposes every other year. The parties should work together to sign all needed forms that will allow the party claiming the exemption to do so.

The Petitioner can claim the minor child(ren) in the following year: _____

The Petitioner can claim the minor child(ren) every _____year after.

The Respondent can claim the minor child(ren) in the following year: _____

The Respondent can claim the minor child(ren) every _____year after.

According to I.C. §31-16-6-1.5(d), the noncustodial parent may claim the child as a dependent for federal and state tax purposes for their specific calendar year(s) mentioned above only if they have paid at least ninety-five percent (95%) of the child support owed for that year by January 31 of the following year.

The custodial parent should take all actions necessary to give up the exemption to claim the child as a dependent during those years by using the process described under Section 152(e) of the Internal Revenue Code.

SO ORDERED THIS: _____

_____

Judicial Officer

Approved by the Coalition for Court Access
CCA-JP-0519-1066
www.indianalegalhelp.org

Distribution:



Petitioner Name: _____

Petitioner Address: _____

_____

Respondent Name: _____

Respondent Address: _____

_____